

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUNIOR LANGOMAS,

Index No.

Plaintiff

-against

CITY OF NEW YORK, POLICE OFFICER,
JONATHAN RODRIGUEZ, Shield No. 00642,
and LIEUTENANT "JOHN DOE", real
identity unknown, the person intended by the NYPD
Police lieutenant who placed plaintiff in
Handcuffs at 1411 5th Avenue, Borough of Manhattan,
On March 7, 2012, and later handed plaintiff over
to Police Officer Rodriguez to be transported to the
police precinct,

Defendants

-----X
SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiffs designate County of New York as the Venue.

The basis of the venue designated by the plaintiffs is the place of occurrence.

Dated: New York, New York
September 30, 2013

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
JUNIOR LANGOMAS
330 Seventh Avenue

15th Floor
New York, New York 10001
(212)564-8152

By: 
K.C. Okoli Esq.

FOR SERVICE ON

CITY OF NEW YORK
C/o MICHAEL D. CARDOZO
Corporation Counsel
NYC Law Department
100 Church Street
New York, New York 10007

POLICE OFFICER JONATHAN RODRIGUEZ, Shield No. 00642
25th Precinct
New York City Police Department

LIEUTENANT JOHN DOE
NYPD

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Plaintiff, by his attorneys, LAW OFFICES OF K.C. OKOLI, P.C., complaining of the
defendants, alleges as follows:

JURISDICTION AND VENUE

1. This action is brought pursuant to the Civil Rights Acts, 42 U.S.C. §1983, for
violation of the plaintiff's Constitutional and civil rights, and pursuant to the common law of the
State of New York for false arrest and malicious prosecution.

2. The jurisdiction of the Court is invoked to secure the protection and redress the
deprivation of rights guaranteed to persons, including the plaintiff herein, by the Fourth and
Fourteenth Amendments to the Constitution of the United States.

3. Venue is proper in the County of New York based upon the fact that the events or omissions which gave rise to the claims asserted herein occurred within New York County.

4. On or about December 26, 2012, plaintiff duly served a Notice of Claim relative to the claims asserted herein, pursuant to the General Municipal Law.

5. More than 30 days have elapsed since the service of the said Notice of Claim, and the defendants have neglected or refused to make any adjustment or payment thereof.

6. This action is commenced within one year and 90 days from the accrual of the state causes of action asserted herein.

PARTIES

7. At all times hereinafter mentioned, plaintiff, Junior Langomas, ("LANGOMAS" or "plaintiff"), was a resident of the County of Bronx, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK (hereinafter, "City") is a municipal corporation established under and by virtue of the laws of the State of New York.

9. At all times hereinafter mentioned, the City maintained, operated, controlled and supervised a police department, the New York City Police Department (hereinafter, "NYPD").

10. At all times hereinafter mentioned, defendant Police Officer Jonathan Rodriguez ("RODRIGUEZ"), was a police officer within the NYPD.

11. At all times hereinafter mentioned, defendant Lieutenant "John Doe" ("JOHN DOE"), was, upon information and belief, a police lieutenant within the NYPD.

12. At all times hereinafter mentioned, the NYPD employed police officers who

performed law enforcement duties for and on behalf of the City within the City's territorial limits, including RODRIGUEZ and JOHN DOE.

13. At all times hereinafter mentioned, the individual defendant law enforcement officers, RODRIGUEZ and JOHN DOE were acting in the course and within the scope of their employment as agents or employees of the City.

14. At all times hereinafter mentioned, the individual defendant law enforcement officers, RODRIGUEZ and JOHN DOE were acting under color of the statutes, ordinances, regulations, customs and usages of the NYPD, the City and State of New York, and under their authority of his offices as law enforcement officers.

STATEMENT OF FACTS

15. On or about March 7, 2012, at approximately 9:30 P.M., LANGOMAS was lawfully present inside his place of employment at a grocery store located at 1411 5th Avenue, Borough of Manhattan, County of New York...

16. While so lawfully present as aforesaid, JOHN DOE came into the grocery store and arrested LANGOMAS for no apparent reason. When LANGOMAS demanded to know the reason for his arrest, JOHN DOE told LANGOMAS to "shut up", and that LANGOMAS would know the reason for his arrest when LANGOMAS got to the police precinct.

17. JOHN DOE then placed LANGOMAS in handcuffs and took LANGOMAS outside the grocery store where they both met with RODRIGUEZ.

18. Thereupon, RODRIGUEZ inquired of JOHN DOE what to do with LANGOMAS

and JOHN DOE instructed RODRIGUEZ to place LANGOMAS in the police vehicle.

19. RODRIGUEZ then did as he was told, and placed LANGOMAS inside the police vehicle, where LANGOMAS was detained for approximately 5-8 minutes before LANGOMAS was taken to the police precinct.

20. At the police precinct, LANGOMAS was falsely charged with criminal sale of marijuana, a crime which LANGOMAS did not commit.

21. As a result of the aforesaid false charge, LANGOMAS had his fingerprints and photographs taken, and otherwise processed for allegedly committing the aforesaid crime.

22. After spending several hours in police custody, LANGOMAS was arraigned before a judge of the Criminal Court of the City of New York, sitting in Manhattan, who released LANGOMAS from police custody.

23. LANGOMAS was arraigned in court on an accusatory instrument which was based on the false statements of RODRIGUEZ that RODRIGUEZ "observed" LANGOMAS on March 7, 2012, at about 9:33 PM commit the alleged crime by selling marijuana to one Alexander Williams.

24. LANGOMAS made several subsequent court appearances to answer the aforesaid false charge against him, until October 11, 2012, when the charge was finally dismissed.

25. By reason of the foregoing, LANGOMAS has suffered loss and damage.

AS AND FOR A FIRST CAUSE OF ACTION: FOURTH AMENDMENT SEIZURE

26. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "25" as if fully set forth herein.

27. By reason of the foregoing, JOHN DOE and RODRIGUEZ committed an unlawful seizure of LANGOMAS, in violation of LANGOMAS' rights guaranteed under the Fourth Amendment to the Constitution of the United States.

28. Said violation of constitutional rights can be redressed pursuant to 42 U.S.C. §1983.

29. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A SECOND CAUSE OF ACTION: COMMON LAW FALSE ARREST

30. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "29 as if fully set forth herein.

31. When defendants arrested LANGOMAS, they fully intended to confine LANGOMAS and restrain his liberty.

32. LANGOMAS was fully conscious of his confinement and detention in police custody, until his arraignment before a judge of the Criminal Court.

33. LANGOMAS did not consent to his aforesaid detention and confinement by the defendants, nor was LANGOMAS' confinement by the defendants otherwise privileged.

34. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A THIRD CAUSE OF ACTION: MALICIOUS PROSECUTION

35. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "34" as if fully set forth herein.

36. Following LANGOMAS' arraignment, defendants continued to maliciously

prosecute LANGOMAS on the aforesaid false charge, thereby causing LANGOMAS to make court appearances. If LANGOMAS had failed to make any of the aforesaid court appearances, he would have been subject to arrest by an arrest warrant for failure to appear in court.

37. Said malicious prosecution of LANGOMAS by the defendants continued from March 8, 2012, until the dismissal of the charge on or about October 11, 2012.

38. By reason of the foregoing, plaintiff has suffered loss and damage.

39. The reliefs sought herein are in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction of the claims herein.

40. Jury trial is demanded for all matters triable by jury.

WHEREFORE, Plaintiff requests that the Court grant the following reliefs:

- a) Damages on all causes of action in an amount to be established at the trial of this action;
- b) Punitive damages against JOHN DOE;
- c) Statutory attorneys' fees under 42 U.S.C. §1988;
- d) Such other or further relief, including costs, disbursements and interest, as to this Court shall seem just and proper in the circumstances.

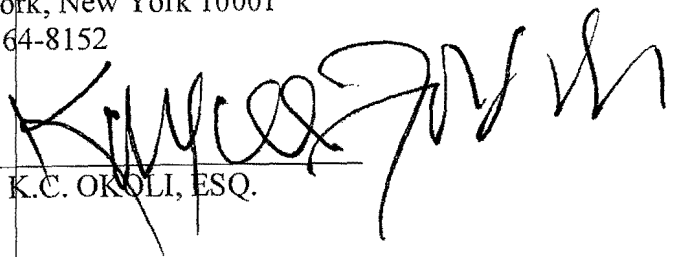
Dated: New York, New York
September 30, 2013

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
JUNIOR LANGOMAS
330 Seventh Avenue

15th Floor
New York, New York 10001
(212) 564-8152

By: _____

K.C. OKOLI, ESQ.

A large, stylized handwritten signature in black ink, appearing to read 'K.C. Okoli', is written over the signature line and extends into the right margin.

FOR SERVICE ON

CITY OF NEW YORK
C/o MICHAEL D. CARDOZO
Corporation Counsel
NYC Law Department
100 Church Street
New York, New York 10007

POLICE OFFICER JONATHAN RODRIGUEZ, Shield No. 00642
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SUMMONS AND COMPLAINT

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LAW OFFICES OF K.C. OKOLI, P.C.
330 Seventh Avenue
15th Floor
New York, N.Y. 10001
(212) 564-8152 (voice)
(212) 268-3443 (fax)